

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA AND THOMAS E. DESOUSA

Index No. 600371/2021

Plaintiffs,

**AFFIRMATION IN
OPPOSITION**

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER

Defendants.

-----X
JASON M. BARBARA, an attorney duly licensed to practice before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury:

1. I am a principal in Jason Barbara & Associates, P.C., attorneys for Defendant Richard A. Calvagno II in the above captioned action. As such, I am fully familiar with the pleadings and proceedings heretofore had in this action based upon a review of the file and materials maintained by this office.

2. This affirmation is submitted in opposition to Plaintiffs' motion for an Order to strike Defendant Calvagno's answer including his affirmative defenses and counterclaims for failure to fully respond to Plaintiffs' demands.

PLAINTIFFS' MOTION IS PROCEDURALLY DEFICIENT

3. Pursuant to Uniform Rule 202.7(a), all discovery-related motions must contain an affirmation that counsel has conferred with the opposing party's counsel in a good faith effort to resolve the issues raised by the motion. Uniform Rule 202.7(c) requires the affirmation of good faith to indicate: (1) the time, place, and nature of the consultation,

(2) the issues discussed, (3) and any resolutions, or demonstrate good cause why no such conferral was held.

4. Motions, such as the one before this Court, are routinely denied when the movant's Affirmation of Good Faith fails to conform with the Uniform Rules' strict tenets. Tine v. Courtview Owners Corp., 40 A.D.2d 966 (2d Dept. 2007); Cestaro v. Mun Yuen Roger Chin, 20 A.D.3d 500 (2d Dept. 2005); Molyneaux v. City of New York, 64 A.D.2d 406 (1st Dept. 2009).

5. Here, Plaintiffs' Affirmation of Good Faith merely states that Defendant is in violation of a correspondence dated May 28, 2021, allegedly sent to the affirmant's office. Clearly, Plaintiffs' Affirmation does not comply with the Uniform Rule 202.7(c)'s requirements. More specifically, Plaintiffs' Affirmation fails to indicate the dates or times that such alleged good faith attempts occurred. Plaintiffs' Affirmation of Good Faith is non-compliant because Plaintiffs' counsel has not made any effort to resolve the issues raised by the motion.

6. Based on the foregoing, Plaintiffs' motion should be denied outright.

DEFENDANT'S CONDUCT IS NOT WILLFUL OR CONTUMACIOUS

7. A motion to strike under CPLR §3126 or a motion to compel under CPLR §3214 should only be granted where the moving party conclusively demonstrates that the non-disclosure is willful, contumacious, or due to bad faith. Brinson v. Pod, 129 A.D. 3d 1005(2d Dept. 2015); Abouzieid v. Cadogan, 291 A.D.2d 423 (2d Dept. 2002); Patterson v. New York City Health and Hospitals Corp., 284 A.D.2d 516 (2d Dept. 2001); Nudelman v. N.Y.C. Transit Authority, 172 A.D.2d 503 (2d Dept. 1991).

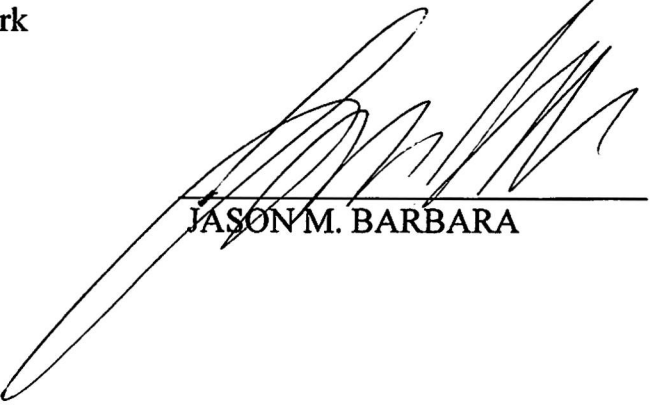
8. Defendant Calvagno has no intention of refusing, delaying or denying any discovery in connection with this action, nor was your affirmant's office, at any time, acting in a willful or contumacious manner with regarding producing videos of the events identified in Defendant's Notice to Cease and Desist.

9. Your affirmant's office has responded to all outstanding discovery that was demanded by Plaintiffs' counsel. Thus, this issue should be considered moot.¹

10. Plaintiffs' have not met their burden of showing that Defendant's conduct, if any, has been willful or due to bad faith. In fact, Plaintiffs have failed to demonstrate any conduct by the Defendant.

WHEREFORE, your affirmant respectfully requests that Plaintiffs' motion be denied in its entirety.

Dated: New Hyde Park, New York
August 5, 2021


JASON M. BARBARA

¹ Annexed hereto as Exhibit "A" is a copy of Defendant's correspondence dated July 22, 2021.

JASON M. BARBARA & ASSOCIATES, P.C.
EXHIBIT A

**JASON M. BARBARA & ASSOCIATES, P.C.
ATTORNEYS AT LAW
3 DAKOTA DRIVE, SUITE 300
NEW HYDE PARK, NEW YORK 11042**

JASON MICHAEL BARBARA

**NABEELA HAMID
DEBORA SHAMOILIA**

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SAMANTHA R. GELLMAN

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Paralegal
DONNA SORBERA

Legal Assistants
JEWEL LOFASO

July 22, 2021

Via Priority Mail

**John N. Cuomo
Attorney at Law
11 Fern Drive
Commack, New York 11725**

**Re: DeSousa et. al. v. Calvagno II et. al.
Index No. 600371/2021**

Dear Mr. Cuomo:

As you are aware, this firm represents Defendant Richard Calvagno II in the above-referenced action. Please note that our office is not in receipt of your May 28, 2021, correspondence requesting copies of the videos asserted in our Notice to Cease and Desist. The correspondence attached to your motion as an exhibit, does not reflect whether it was e-mailed to us or sent via regular mail to our office.

Notwithstanding, enclosed please find a USB drive with copies of the nine (9) videos taken by my client.

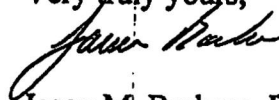
Additionally, the Defendant intends to present Tina Aprea, residing at 337 Grand Central Ave, Amityville NY 11701, as a witness, should this matter go to trial.

Regarding Plaintiffs' response dated March 30, 2021, to Defendant's Combined Demands, such response is improper as MBI is not a party to this action. Please provide a proper response to Defendant's demand for adverse party statements.

Lastly, please note that Plaintiff's response to Defendant's Bill of Particulars demand #22 seeking names of medical provider is proper and within the scope of the discovery device. Such information is required to make our demand for your client's HIPAA authorizations.

Kindly, provide a response prior to August 19, 2021, to avoid court intervention.

Very truly yours,



Jason M. Barbara, Esq.

cc: Richard Calvagno II (*via email*)

Warshaw Burnstein LLP (*via priority mail*)
Attorney for Defendant Karcher
Marc A. Lavaia, Esq.
575 Lexington Ave, 7th Floor
New York, NY 10022

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**DIANCE C. DESOUSA AND THOMAS E.
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Index No. 600371/2021

Plaintiff,

-against-

**RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,**

Defendant.

AFFIRMATION IN OPPOSITION

JASON M. BARBARA & ASSOCIATES, P.C.

Attorneys for Defendant,

Richard C. CALVAGNO II

Office and Post Office Address

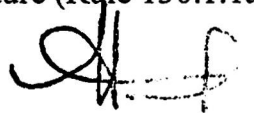
3 Dakota Drive, Suite 300

New Hyde Park, NY 11042

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Signature (Rule 130.1.1a)



NABEELA HAMID, ESQ.

Service of a copy of the within

is hereby admitted.